

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Monday, September 14, 2026
1:30 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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24CV-03246	Cavalry SPV I, LLC vs. Elias Rios
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Motion for Order Deeming Admitted Requests for Admission

The unopposed motion by plaintiff Cavalry SPV I, LLC, for an order deeming admitted the truth of any matters specified in plaintiff's Requests for Admission, Set One, served on defendant Elias Rios is GRANTED. (Code Civ. Proc., § 2033.280, subd. (b).) It is undisputed that Defendant has not served a response to the requests for admissions. The Court notes that Plaintiff has not requested monetary sanctions.

The Court will sign the proposed order submitted with the moving papers.

Trial Setting Conference

Appearance required.

Order of Examination (Small Claims) – Nayeli Jimenez Camacho

Appearance required. The Court notes that the judgment creditor has not filed proof of service of the Order to Produce Statement of Assets and to Appear for Examination.

Continued at the request of Plaintiff from August 31, 2026, for oral argument. The Court notes that on September 4, 2026, Plaintiff filed a late 138-page opposition brief without leave of court. Any written opposition was to be filed and served at least nine court days before the original hearing date of August 31, 2026. (Code Civ. Proc., § 1005, subd. (b).)

Motion to Strike

Defendant Grassland Water District's motion to strike the prayer for punitive damages at page 8, line 21 of the complaint is GRANTED without leave to amend. Punitive damages are not recoverable against Defendant, a government entity. (Gov. Code, § 818.) Defendant is directed to prepare and submit a written order consistent with the Court's ruling for the Court's signature, as required by law and the California Rules of Court.

Demurrer to Complaint

Defendant Grassland Water District's general demurrer to the first cause of action on the ground it does not allege sufficient facts to constitute a cause of action for breach of contract is SUSTAINED. It is undisputed that Plaintiff does not allege in the complaint that he is a party to, or a third-party beneficiary of, the alleged contract between Defendant and the U.S. Department of the Interior (see paragraphs 9, 10, and 22 of the complaint) with the necessary standing to sue Defendant for breach of contract.

Defendant's unopposed general demurrer to the second cause of action for "breach of duty" on the ground it does not allege sufficient facts to constitute a cause of action is SUSTAINED without leave to amend. Breach of duty is an element of the tort of negligence and is not an independently recognized cause of action under California law. Further, all tort causes of action against public entities are based on statute. The Government Claims Act abolishes all common law tort liability against government entities. (Gov. Code, § 815; *Leon v. County of Riverside* (2023) 14 Cal.5th 910, 918.)

Defendant's general demurrer to the third cause of action for negligence on the ground it does not allege sufficient facts to constitute a cause of action is SUSTAINED without leave to amend. Public entities are not subject to common law tort liability.

Defendant's general demurrer to the entire complaint on the ground it does not allege sufficient facts to constitute a cause of action against Plaintiff is SUSTAINED. As stated above, public entities are not subject to common law tort liability and the complaint does not specifically identify the grounds for statutory liability against Defendant.